



PROVO CITY CORPORATION
DEVELOPMENT SERVICES DEPARTMENT
Planning Commission Agenda
February 25, 2026

NOTICE OF PUBLIC HEARING BEFORE THE PLANNING COMMISSION

The Provo City Planning Commission will hold a public hearing on February 25, 2026 at 6:00 PM. Located at: Council Chambers 445 West Center Street. The items listed below will be discussed, and anyone interested is invited to participate and provide comment. Hearings can be viewed live and on-demand at: YouTube [youtube.com/user/ProvoChannel17](https://www.youtube.com/user/ProvoChannel17) and on Facebook [facebook.com/provochannel17](https://www.facebook.com/provochannel17).

NOTICE OF PUBLIC MEETING BEFORE PROVO MUNICIPAL COUNCIL

On Tuesday, **March 24, 2026**, at 5:30 PM. the Provo Municipal Council will consider the items noted below with a star (*). Items noted on the agendas with a star require legislative action by the Municipal Council. Council agendas can be viewed at the Provo City Council web site on the Thursday prior to the Council meeting at <http://agendas.provo.gov>. For more information, call (801) 852-6120.

Unmarked items are administrative and require the approval only of the Planning Commission. Decisions on the unmarked items may be appealed to the Board of Adjustment by making application by 6:00 PM. **within 14 days of the Planning Commission decision.**

Study Session

1. Parking Ratios – Bill Peperone and Aaron Ardmore

Public Hearings

- * Item 1 The Provo City Council office requests an Ordinance Text Amendment to Section 14.04.010 to add requirements for Planning Commission members running for office to take a leave of absence. Citywide Application. Aaron Ardmore (801) 852-6404 aardmore@provo.gov PLOTA20260033

Preceding the public hearing, there will be a Study Session at 5:00 PM. at the Provo Peak Conference Room, 445 W Center Street. The Study Session is open to the public; however, formal presentation of items, public comment and actions will be reserved for the public hearing at 6:00 PM.

To send public comments to Planning Commission members, email them at dspublichearings@provo.gov. Please submit public comment emails before 3:00 PM the day of the hearing. Additional information can be found at provo.gov/publiccomments.

Copies of the agenda materials, public hearing procedure, and staff recommendations are available the week of the hearing at a reasonable cost at 445 W Center Street, Suite 200, Provo between the hours of 7:00 AM. and 6:00 PM., Monday through Thursday. Agendas and staff recommendations are also generally available on the Provo City Development Services web site the week of the meeting at provo.gov/planningcommission.

Provo City will make reasonable accommodations for all citizens interested in participating in this meeting. If assistance is needed to allow participation at this meeting, please call the Development Services Department at (801) 852-6400 before 12:00 PM. the day before the meeting to make arrangements.

By order of the Provo City Planning Commission
Planning Secretary, (801) 852-6424



***ITEM 1** The Provo City Council office requests an Ordinance Text Amendment to Section 14.04.010 to add requirements for Planning Commission members running for office to take a leave of absence. Citywide Application. Aaron Ardmore (801) 852-6404
aardmore@provo.gov PLOTA20260033

Applicant: Provo City Council

Staff Coordinator: Aaron Ardmore

Relevant History: This proposal comes from the City Council after discussing the proposal and language in the January 13, 2026, Council Work Meeting.

Neighborhood Issues: This is a citywide amendment; all neighborhood district chairs were notified. Staff have not received any feedback at this time.

POSSIBLE ACTIONS:

1. **Recommend Approval** of the requested text amendment. *This action would be consistent with the recommendations of the Staff Report.*
2. **Continue** to a future date to obtain additional information or to further consider information presented. *The next available meeting date is March 11, 2026 at 6:00 P.M.*
3. **Recommend Denial** of the requested text amendment. *This action would not be consistent with the recommendations of the Staff Report. The Planning Commission should state new findings.*

Summary of Key Issues:

- Requires sitting Planning Commissioners to take a leave of absence upon filing for candidacy for public office.
- Automatically vacates the seat of a sitting Planning Commissioner who is elected or appointed to public office.
- Proposal protects Planning Commissioners from potential or perceived conflict of interest.

OVERVIEW

The Provo City Council office is requesting code amendments to address rules for when a Planning Commissioner runs for a public office. The rules related to the Planning Commission are in Provo City Code 14.04.010, and this amendment proposes adding a new subsection that would require a Planning Commissioner running for public office to take a leave of absence, and then would automatically vacate their seat, if elected or appointed to a public office.

STAFF ANALYSIS

Staff feel that this proposed amendment is a reasonable addition to the Planning Commission rules and will protect the Commission and the City from any potential conflict of interest that could arise when running for a public office. Previously, staff have encouraged Planning Commission members who run for office to step down during the campaign to avoid the potential, or the appearance, of politicizing the Planning Commission.

Further analysis is taken by reviewing the request against the criteria for text amendments in Provo City Code 14.02.020, as follows:

Before recommending an amendment to this Title, the Planning Commission shall determine whether such amendment is in the interest of the public and is consistent with the goals and policies of the Provo City General Plan. The following guidelines shall be used to determine consistency with the General Plan:

(a) Public purpose for the amendment[s] in question.

Staff response: The purpose of the amendment is to protect the commission and the city from any potential conflict of interest.

(b) Confirmation that the public purpose is best served by the amendment[s] in question.

Staff response: The proposed amendment is simple and direct in creating rules for when a Planning Commissioner runs for public office and serves the above public purpose.

(c) Compatibility of the proposed amendment with General Plan policies, goals, and objectives.

Staff response: While there are not any specific goals that this amendment directly addresses, having a trustworthy and unbiased Planning Commission helps serve the public of Provo. This amendment will help prevent any political influence or campaigning from a member of the Planning Commission in their discussions and decisions.

(d) Consistency of the proposed amendment with the General Plan's "timing and sequencing" provisions on changes of use, insofar as they are articulated.

Staff response: There are no timing and sequencing issues related to this proposal.

(e) Potential of the proposed amendment to hinder or obstruct attainment of the General Plan's articulated policies.

Staff response: This proposal does not hinder or obstruct attainment of the General Plan's articulated policies.

(f) Adverse impacts on adjacent landowners.

Staff response: Does not apply.

(g) Verification of correctness in the original zoning or General Plan for the area in question.

Staff response: Does not apply.

(h) In cases where a conflict arises between the General Plan Map and General Plan Policies, precedence shall be given to the Plan Policies.

Staff response: There is not a conflict.

CONCLUSIONS

Staff are comfortable with this request that helps to clarify expectations for Planning Commissioners and for the public when a Planning Commissioner runs for public office.

ATTACHMENTS

1. Proposed Amendments

ATTACHMENT 1 – PROPOSED AMENDMENTS

14.04.010 Planning Commission Created - Chair - Rules

- (1) A Provo City Planning Commission is hereby created. Said Commission shall consist of nine (9) members, each of whom shall be a resident of Provo City and each of whom shall be appointed by the Mayor with the advice and consent of the Municipal Council.
- (2) The terms of office for all members of the Planning Commission shall be no more than three (3) years. Terms shall be staggered to ensure that one-third of Commission Member appointments shall expire each year. Members may be removed with or without cause by a majority vote of the Municipal Council.
- (3) Members shall be selected without respect to political affiliation and shall serve without compensation except for payment of reasonable expenses.
- (4) The Planning Commission shall:
 - (a) Elect from its membership a chair who shall serve a one (1) year term;
 - (b) Pursuant to Section 14.04.040, Provo City Code, adopt reasonable policies and rules for the transaction of business, which shall not conflict with any of the provisions of this Chapter; and
 - (c) Keep a public record of its proceedings.
- (5) A quorum of the Commission shall consist of four (4) members, and at least four (4) votes must be cast in order to render a decision of the Commission. All members present, including the chair, are encouraged to participate in discussion and vote, unless recusing themselves due to conflict of interest.
- (6) When a regularly scheduled and noticed meeting of the Planning Commission does not occur because a quorum of the Commission is not present, all action items scheduled to be heard on that date shall be continued to the next regularly scheduled meeting of the Commission.
- (7) If any member of the Planning Commission files as a candidate for election to a public office, they must take a leave of absence from the Planning Commission immediately upon filing and until the election is over. If any member of the Planning Commission is elected or appointed to any public office, their seat as a member of the Planning Commission becomes vacant upon election or appointment to the public office.